

EXHIBIT 1

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ERIC G. MACFARLANE,

Plaintiff,

-against-

CITY OF NEW YORK, BRIAN MCCONVILLE,
YESENIA VELAZQUEZ, GEORGE GRIFFO and
JOHN DOE 1-5, individually and in
their official capacity, (whose names
being fictitious, the true names
being unknown to the plaintiff),

Defendants.

-----X

TO THE ABOVE NAMED DEFENDANT(s):

YOU ARE HEREBY SUMMONED to appear in this action by serving a notice of appearance on plaintiff's attorneys within 20 days after service of this summons, exclusive of the day of service or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

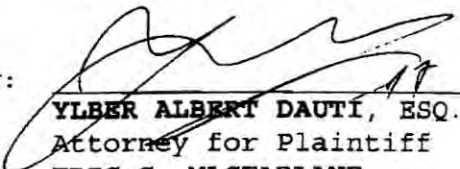
Plaintiff designates BRONX County as the place of trial. The basis of the venue designated is the place of occurrence, in front of Yankee Stadium at Jerome Avenue, Bronx, New York, 10454.

Dated: New York, New York
May 17, 2017

Yours, etc.

THE DAUTI LAW FIRM

By:


YLBER ALBERT DAUTI, ESQ.
Attorney for Plaintiff
ERIC G. MACFARLANE

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(212) 566-4868

DEFENDANTS' ADDRESSES:

ZACHARY W. CARTER
NEW YORK CITY LAW DEPARTMENT
OFFICE OF THE CORPORATION COUNSEL
Attorneys for the Defendant
CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

BRIAN MCCONVILLE
163-42 25th Drive
Flushing, NY 11358

BRIAN MCCONVILLE
20 Starks Place
Lynbrook, NY 11563-4025

YESEINA VELAZQUEZ
New York City Police Department
1 Police Plaza
New York, NY 10007

GEORGE GRIFFO
New York City Police Department
1 Police Plaza
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
ERIC G. MACFARLANE,

Plaintiff,

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THE CITY OF NEW YORK, BRIAN MCCONVILLE,
YESEINA VELAZQUEZ, GEORGE GRIFFO and
JOHN DOES #1-5, individually and in their official
capacity, (whose names being fictitious, the true names
being unknown to the plaintiff),Defendants.
-----XAMENDED
VERIFIED COMPLAINT

Index No.: 25491/2014

Filed: 7-20-17

Plaintiff, by his attorney, THE DAUTI LAW FIRM P.C., complaining of the defendants
herein, alleges as follows:

1. That at all times herein mentioned, the plaintiff was and still is a resident of the
County of Bronx, City and State of New York.
2. That the incident which is the basis of the within action took place in Bronx
County, City and State of New York.
3. At all times mentioned herein, defendant, CITY OF NEW YORK was and still is
a municipal corporation duly organized and existing under and by virtue of the laws of the State
of New York.
4. At all times hereinafter mentioned, the New York City Police Department was
and still is an agency and/or department of the defendant CITY OF NEW YORK.

5. That at all times herein mentioned, plaintiff served a Notice of Claim and Intention to Sue thereupon on defendant CITY OF NEW YORK on April 14, 2014 within the time prescribed by law.

6. That at least thirty (30) days have elapsed since the service of said Notice of Claim and the defendant CITY OF NEW YORK has neglected and refused to make an adjustment in payment thereof.

7. That plaintiff appeared for a hearing pursuant to the General Municipal Law 50-h on July 8, 2014.

8. That the plaintiff has duly complied with all statutes and laws applicable to the defendant CITY OF NEW YORK precedent to the making of this claim and bringing this action.

9. Defendant, CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, CITY OF NEW YORK.

10. At all relevant times and in all their actions, the defendants were acting under color of law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the City and State of New York and pursuant to their authority as police personnel.

11. At all relevant times, defendants were acting as the agents, servants, and employees of defendant, CITY OF NEW YORK.

12. The defendants are sued individually and in their official capacity.

13. Each and all of the acts of the defendants alleged herein were performed by said defendants while acting within the scope of their employment.

14. At all times relevant to this action, defendant, POLICE OFFICER JOHN DOE #1 was a policy maker with respect to training, supervision, and discipline of NYPD officers, including the other individually named defendants.

15. That on January 29, 2014, plaintiff was working for a security company known as Securitas as a security guard outside Yankee Stadium in the Bronx, New York for a hockey game between professional hockey teams who were members of the National Hockey League.

16. The security booth was a converted "port-a-potty" structure that was located on the sidewalk outside Yankee Stadium at Jerome Avenue.

17. Upon information and belief, defendant BRIAN MCCONVILLE and Defendants JOHN DOE 2-3, believed that the security booth was a bathroom and tried to enter the booth.

18. Upon discovering that the booth was not a bathroom, defendants BRIAN MCCONVILLE and JOHN DOE 2-3 became angry at Plaintiff without any justification or cause.

19. At said time and place, defendants, BRIAN MCCONVILLE and JOHN DOE 2-3 began a verbal altercation with the plaintiff.

20. At all times herein mentioned, a New York City Police Department (NYPD) car, van and defendants JOHN DOE 4-5 and Defendant YESEINA VELAZQUEZ who were Police Officers on duty and in uniform were only several feet away from plaintiff and defendants BRIAN MCCONVILLE and JOHN DOES 2-3.

21. Plaintiff saw the Defendant JOHN DOE 4-5 and YESEINA VELAZQUEZ who were Police Officers on duty and in uniform and asked them to help him. Defendant YESEINA VELAZQUEZ stated to plaintiff that she would help him. Plaintiff thereafter justifiably relied on defendant YESEINA VELAZQUEZ'S representation and walked over to her NYPD vehicle.

22. At all times hereinafter mentioned, after plaintiff walked over to Defendant Police Officer YESEINA VELAZQUEZ with an expectation of being protected based upon her verbal statement that she would help him, the defendant BRIAN MCCONVILLE began physically assaulting and striking the plaintiff in the head and body while plaintiff stood next to the NYPD police vehicle.

23. Despite defendant Police Officer YESEINA VELAZQUEZ'S representation that she would help plaintiff, she failed to intervene after defendant JOHN DOE 3 flashed a law enforcement badge.

24. After plaintiff was beaten while on top of the NYPD police car and down to the ground, he was taken to an NYPD police station within Yankee Stadium and told by Defendant SGT. GEORGE GRIFFO, a supervisory officer and policymaker at the NYPD station that plaintiff should not press charges against the defendants and that if he did press charges against them, then they would press charges against him.

25. Defendants intentionally and purposefully failed to secure evidence and statements regarding the criminal conduct of Defendants BRIAN MCCONVILLE and JOHN DOE 2-3 in an effort to protect them from criminal prosecution because they were law enforcement officers.

26. Although Defendant BRIAN MCCONVILLE was arrested for assault, defendants JOHN DOE 2-3 were neither charged nor investigated for their criminal conduct because they were at the time law enforcement officials.

27. The aforesaid assault and battery occurred through the use of excessive and unjustified force, without provocation, and without reasonable cause. Plaintiff was thereafter refused medical attention until finally being taken to the Hospital.

28. As a result of the foregoing, plaintiff sustained, *inter alia*, physical injuries, pain and suffering, emotional distress, a deprivation of his state and federal rights and constitutional rights.

29. The abuse to which plaintiff was subjected was consistent with an institutionalized custom and practice of the New York City Police Department, which was known to and ratified by defendant CITY OF NEW YORK.

30. Despite knowledge of these institutionalized customs and practices, the defendant CITY OF NEW YORK has at no time taken any effective action to prevent New York City police personnel from continuing to engage in this type of misconduct.

31. Defendant CITY OF NEW YORK had prior notice of the propensities of the individually named defendants but took no steps to train, retrain, or adequately supervise or discipline them to correct their abuse of authority or to discourage their unlawful use of authority.

32. As a result of the foregoing, plaintiff sustained, *inter alia*, physical injury, pain and suffering, emotional distress, a deprivation of his state and federal rights and constitutional

rights, loss of earnings and incurred medical expenses and expects to incur medical expenses in the future.

33. That this action falls within one or more of the exceptions set forth in Article 16 of the C.P.L.R.

FIRST CAUSE OF ACTION

(Deprivation of Federal rights under 42 U.S.C. Section 1983)

34. Plaintiff repeats and realleges each and every allegation of paragraphs "1" through "33" with the same force and effect as if fully set forth herein.

35. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the City of New York and the New York City Police Department, which is forbidden by the Constitution of the United States.

36. That the aforementioned official customs, usages, practices and procedures of the defendant CITY OF NEW YORK through its NEW YORK CITY POLICE DEPARTMENT were implemented and created by its employees, including those supervisory and/or commanding employees of the New York City Police Department whose acts and/or omissions create "official policies, customs and/or practices" within the meaning of 42 U.S.C. 1983. Said official customs and practices included, but were not limited to, the following:

a) Encouraging, allowing, and/or ratifying a policy and custom whereby senior commanding police officers cover up or otherwise hinder the disciplining and/or prosecution of

those police officers under their command that have engaged in unjustified, unreasonable and illegal use of force;

b) Encouraging, allowing, and/or ratifying a policy and custom whereby police officers, including supervisory officers, permit, allow and fail to intervene while observing other officers committing crimes, assaulting persons without reason or just cause and violating Constitutional rights of persons;

c) Refusing to release to persons who claim they have been subject to unjustified, unreasonable and illegal use of force by police officers the defendants' internal and official documents relative to the incidents that give rise to such claims;

d) Maintaining a system for disciplining police officers and investigating civilian complaints of improper police conduct that is dominated and controlled by police department employees who are unable to be impartial and who systematically refuse to give proper weight to evidence of police misconduct;

e) Tolerating the use of abusive language and sentiments among members of its police departments and failing to discipline or discharge those police officers who engage in such conduct;

f) Failing to properly hire, train and supervise police officers in a fashion that would encourage police officers not to engage in the unjustified, unreasonable, illegal and abusive use of force, and in ratifying, justifying, and protecting from civil and criminal liability the acts of those police officers that are unjustified, unreasonable and involve the illegal or abusive use of force;

g) Maintaining and operating police Internal Affairs Units in which the supervisors of said Units engage in a systematic policy and practice of refusing to fully investigate complaints of police misconduct. Said supervisors also intentionally obstruct investigations of police misconduct by instructing those persons under their command not to seek relevant and necessary evidence to document claims of police misconduct and attempt to dissuade injured persons like plaintiff to not press charges against the offending officers;

h) Failing to act to discipline, suspend and/or otherwise take remedial action against those employees of the New York City Police Department who, while acting under the color of state law, violated the civil rights of members of the public.

i) Allowing, suffering, creating and/or otherwise permitting an environment whereby a custom and practice known as "the wall of silence" exists. Said custom and practice involves a virtually uniform refusal by New York City police officers to intervene when other officers commit crimes in their presence and to testify truthfully about instances of police misconduct and civil rights violations. Said custom and practice involves either failing to testify about, or otherwise act to prevent, police misconduct and civil rights violations.

j) Allowing, suffering, creating and/or otherwise permitting an official policy, custom and/or practice of hiring and retaining for employment police officers with predispositions to abuse and violate the civil rights of others. This policy, custom and practice is evidenced, in part, by the CITY OF NEW YORK'S inadequate and/or non-existent attempts to screen applicants with such tendencies and exclude them from

employment as police officers and/or discharge such persons from employment as police officers.

k) Active participation in and/or condoning of, conspiracies by various members of its police force, including senior commanding and/or other supervisory police officers, to, while acting under color of state law, deprive persons of their civil rights.

l) Isolating the City of New York's Law Department from the discipline of police officers so that civil suits against police officers arising out of the scope of their employment are ignored without investigation or review by the police department. Such civil suits have no impact on the employment of these officers, including suits resulting in verdicts against the police officers.

m) Failing to discipline officers for making false statements to disciplinary agencies and courts with no procedure to notify officers' supervisors of unfavorable judicial review of their conduct in providing perjurious, exaggerated and incredible testimony.

37. As a result of the above-described policies and customs, police officers, including the named defendants, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated and would instead be tolerated.

38. As a result, the defendants were further caused and encouraged to believe that non-Caucasian persons could be subjected to unjustified, unreasonable and illegal use of force, and that such acts or omissions would, in fact, be permitted and ratified as just and proper by the defendants.

39. That alleged victims of the aforesaid wrongful actions, policies and customs of the defendants existed prior to January 29, 2014.

40. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff ERIC G. MACFARLANE, was assaulted and subjected to wanton and excessive use of force.

41. That if certain of the individual defendants did not themselves engage in tortious conduct or physically assault, batter and abuse the plaintiff, said individual defendants failed to prevent the physical assault, battery, and abuse of the said plaintiff and other tortious conduct by the other individual defendants despite having a duty to do so, said failure to act being either intentional and/or in gross disregard of the civil rights of the plaintiff, ERIC G. MACFARLANE.

42. By the actions described above, the defendant CITY OF NEW YORK, by the acts of its employees, including the individual defendants, in furtherance of the said official policies and/or customs, illustrated a deliberate indifference to the Constitutional rights of the plaintiff and deprived plaintiff of the following clearly established and well-settled constitutional rights:

- a. Freedom from the use of excessive and unreasonable force;
- b. Equal protection under the law;

43. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department deprived plaintiff, ERIC G. MACFARLANE, of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States of America and in violation of 42 U.S.C. Sections 1983, 1985 (2) (3), 1986 and 1988 and were the direct and proximate cause of the constitutional violations suffered by plaintiff as

alleged herein and demonstrated a deliberate indifference on the part of the policymakers of the CITY OF NEW YORK to the constitutional rights of persons, including the plaintiff.

44. That the policymakers of the CITY OF NEW YORK knew to a moral certainty that their Police Officers, including the defendants herein, would confront a situation wherein other officers would violate the law, commit criminal acts and assault, batter and use excessive force on persons and discriminate against African American males in violation of their Constitutional rights, that such situations would present said officers with a difficult choice of the sort that training or supervision would make less difficult and that there was a history of officers mishandling similar situations prior to January 29, 2014 and that the wrong choice by the officers would frequently cause the deprivation of a citizen's rights and that the extent of such managerial inadequacies manifests a deliberate indifference to the federal constitutional rights of persons with whom such officers interact.

45. That as a result of the foregoing, the plaintiff has suffered physical pain, sustaining severe and permanent personal injuries, psychological injuries and has further suffered loss of quality and/or enjoyment of life, past medical expenses and further medical expenses to be incurred in the future.

46. The foregoing acts of the defendants were so egregious and reprehensible and were performed in a manner which so violates the law and were so outrageous that it constitutes conduct that no civilized society should be required to tolerate.

47. As a result of the foregoing, plaintiff ERIC G. MACFARLANE, has been damaged and is entitled to compensatory damages in an amount to be fixed by a jury and is

further entitled to punitive damages in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION

(Assault and Battery)

48. Plaintiff repeats and realleges each and every allegation of paragraphs "1" through "47" with the same force and effect as if fully set forth herein.

49. Defendants' aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

50. Defendants physically struck plaintiff, ERIC G. MACFARLANE, in a harmful, violent, vicious, intentional, offensive, and unwanted manner.

51. Defendants assaulted and battered plaintiff ERIC G. MACFARLANE without any provocation, reasonable cause or justification.

52. That as a result of the foregoing, the plaintiff has suffered physical pain, sustaining severe and permanent personal injuries, psychological injuries and has further suffered loss of quality and/or enjoyment of life, loss of earnings, past medical expenses and further medical expenses to be incurred in the future.

53. That by reason of the foregoing, the plaintiff, ERIC G. MACFARLANE, has been damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION
(Negligence)

54. Plaintiff repeats and realleges each and every allegation of paragraphs "1" through "53" with the same force and effect as if fully set forth herein.

55. Defendants, CITY OF NEW YORK and YESEINA VELAZQUEZ voluntarily assumed a duty to the plaintiff beyond what was owed to the public generally.

56. Defendants, CITY OF NEW YORK and YESEINA VELAZQUEZ knew that inaction could lead to harm and injury to plaintiff.

57. Defendants, CITY OF NEW YORK by and through defendant YESEINA VELAZQUEZ had direct contact with the plaintiff ERIC G. MACFARLANE.

58. Plaintiff, ERIC G. MACFARLANE, justifiably relied on defendant CITY OF NEW YORK and YESEINA VELAZQUEZ'S affirmative undertaking.

59. Defendant, CITY OF NEW YORK and YESEINA VELAZQUEZ, failed to intervene and protect plaintiff from the physical assault and battery despite plaintiff's justifiable reliance on defendant's promise to protect plaintiff.

60. Each and all of the aforementioned acts of the defendants alleged herein were performed by said defendant while acting within the scope of their employment.

61. That as a result of the defendants' negligence, the plaintiff has suffered physical pain, sustaining severe and permanent personal injuries, psychological injuries and has further suffered loss of quality and/or enjoyment of life, past medical expenses and further medical expenses to be incurred in the future.

62. That by reason of the foregoing, the plaintiff ERIC G. MACFARLANE, has been

damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
(Negligent Hiring, Supervision, Training and Retention)

63. Plaintiff repeats and realleges each and every allegation of paragraphs "1" through "62" with the same force and effect as if fully set forth herein.

64. Defendant CITY OF NEW YORK was careless, reckless and otherwise negligent in hiring, training, supervising and retaining as and for its employees, the individually named defendants.

65. Defendants lacked the maturity, sensibility, moral character and intelligence to be employed or remain employed by the defendant City of New York.

66. Defendant CITY OF NEW YORK knew or should have known that the said employees lacked the ability, competence, deportment, experience, maturity and moral character to be employed or remain employed by the defendant City of New York.

67. Defendant CITY OF NEW YORK failed to adequately investigate, supervise or monitor the individually named defendants daily activities and transactions.

68. Defendant CITY OF NEW YORK could reasonably have anticipated that the individually named defendants' lack of ability, competence, deportment, experience, maturity and moral character would likely result in injury to others.

Index No. 25491 Year 2014
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COUNTY OF BRONX

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Plaintiff,

-against-

THE CITY OF NEW YORK, BRIAN MCCONVILLE,
YESEINA VELASQUEZ, GEORGE GRIFFO and
JOHN DOES #1-10,

Defendants.

SUPPLEMENTAL SUMMONS AND VERIFIED AMENDED COMPLAINT

THE DAUTI LAW FIRM, P.C.
Attorney for Plaintiff
45 Broadway, 30th Floor, Suite 3020
New York, N.Y. 10006

TO:
Attorney(s) for

Service of a copy of the within is hereby admitted.

Dated:

.....
Attorney(s) for

Certification, NYCRR 130.1.1
The undersigned has certified the propriety
of the foregoing document(s) pursuant to
NYCRR 130.1.1

Y. ALBERT DAUTI, Esq.

Dated: New York, New York
May 17, 2017